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GOVERNMENT - New state laws go into effect to start 2023

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A new year brings new opportunities, new goals…and new laws.

California has a whole slate of new laws approved by the Legislature and codified by Gov. Gavin Newsom that will go into effect in 2023, including a fur ban, penalties for vehicular sideshows and the designation of a new state holiday.

Among the many new regulations are traffic-related laws, such as Senate Bill 1087 by Lena Gonzalez, D-Long Beach, which aims to reduce catalytic converter theft by specifying who can sell converters to recyclers and requiring those recyclers to maintain documentation such as the year, make, model and copy of the title from the vehicle in which they were removed.

Assembly Bill 2147 by Philip Ting, D-San Francisco, prohibits police officers from stopping pedestrians for certain pedestrian-exclusive violations, such as crossing the road when there is no crosswalk, unless there is immediate danger of a crash.

Two new laws will attempt to cut down on vehicular sideshows. Senate Bill 1472 by Henry Stern, D-Calabasas, expands the criteria of “gross negligence” pertaining to vehicular manslaughter to include fatalities resulting from drivers involved in sideshow activity, exhibition of speed or speeding over 100 mph. Assembly Bill 2000 by Jesse Gabriel, D-Encino, includes parking lots and off-street parking areas as locations where sideshow activity and speed contests are illegal.

Assembly Bill 1732 by Jim Patterson, R-Fresno, will authorize law enforcement agencies to request the California Highway Patrol to activate a Yellow Alert when a fatal hit-and-run has taken place and encourage local media outlets to spread the information contained in such an alert.

A number of alcohol-related laws are also on the books. Assembly Bill 920 by Cecilia Aguiar-Curry, D-Winters, allows licensed craft distillers to directly ship distilled spirits made or produced by the licensee at its premises to patrons as long as the amount shipped does not exceed the equivalent of 2.25 liters in any combination of prepackaged containers per day per consumer, the licensed distiller maintains adequate records of shipments and provides them to the Department of Alcoholic Beverage Control, the distiller requires the common carrier to obtain the signature of any individual 21 years of age or older prior to delivery, and the shipping containers are clearly labeled with the words “CONTAINS ALCOHOL: SIGNATURE OF PERSON AGE 21 YEARS OR OLDER REQUIRED FOR DELIVERY.”

Another bill by Aguiar-Curry, Assembly Bill 2303, prohibits the use of the phrase “California agave spirits” unless the spirits are produced entirely from agave grown in California and do not contain flavoring or color additives.

Senate Bill 298 by Bill Dodd, D-Solano, allows brewpub-restaurant license holders to exchange the license for a bonafide public eating place license.

Assembly Bill 2238 — jointly authored by Assembly members Luz Rivas, D-North Hollywood; and Eduardo Garcia, D-Coachella; as well as former Assemblywoman Cristina Garcia, D-Bell Gardens — directs the creation of a statewide extreme heat advance warning and ranking system based on climate and health impact information by the California Environmental Protection Agency.

Senate Bill 852, also by Dodd, authorizes the establishment of Climate Resilience Districts statewide to help

communities mitigate risk in advance of a disaster and promote recovery to prepare for threats related to climate change.

Assembly Bill 2568 by former Assemblyman Ken Cooley, D-Rancho Cordova, allows the practice of individuals or firms providing insurance to state legal cannabis businesses to not be considered a crime under state law.

Senate Bill 1040 by Susan Rubio, D-Baldwin Park, authorizes the state insurance commissioner to order restitution for all individuals who sell insurance without a proper state license and try to deceive others on extended vehicle warranties through robocalls and other means.

Assembly Bill 44 by Laura Friedman, D-Glendale, bans the manufacture and sale of all new fur products in California. It does not apply to furs that were made before the law was enacted.

Assembly Bill 2596 by Evan Low, D-Campbell, officially designates Lunar New Year as a state holiday, allowing workers to use eight hours of vacation, annual leave or compensating time off in lieu of eight hours of personal holiday credit. Lunar New Year will fall on Jan. 22.

Assembly Bill 984 by Lori Wilson, D-Solano, allows the DMV to issue alternatives to traditional license plates such as digital plates, vinyl front license plate wraps and digital registration cards.

Assembly Bill 2949 by Alex Lee, D-San Jose, exempts disabled veterans, Pearl Harbor survivors, former prisoners of war, and Purple Heart and Medal of Honor recipients with specialized plates from paying tolls at bridges, highways and other toll centers.

Additionally, minimum wage workers can expect to see a bump in their pay to $15.50 per hour this year. This change comes as a result of Senate Bill 3, which was signed into law by former Gov. Jerry Brown to bring the minimum wage up to $15 per hour by 2022.

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